

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE: Mental Health Counselor License of DAVID EKMAN License No. 00367 Respondent	CASE NO. 21-0041 NOTICE OF HEARING AND STATEMENT OF CHARGES
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COMES NOW the Iowa Board of Behavioral Science (“Board”) and files this Notice of Hearing and Statement of Charges against David Ekman (“Respondent”), Marshalltown, Iowa, pursuant to Iowa Code sections 17A.12(2), 17A.18(3), and 272C.3(1)(e), and 645 Iowa Administrative Code (IAC) 11.6.

A. TIME, PLACE, AND NATURE OF HEARING

1. Hearing. A disciplinary contested case hearing shall be held on September 14, 2023, before the Board. The hearing shall begin at 10:30 a.m. and shall be located in the 5th Floor Conference Room #526 at the Lucas State Office Building, 321 E. 12th Street, Des Moines, Iowa 50319.

2. Answer. Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges, you may file an Answer pursuant to 645 IAC 11.12. The Answer should specifically admit, deny, or otherwise answer all allegations contained in sections C and D of this Notice of Hearing and Statement of Charges.

3. Filing of Pleadings. Pleadings shall be filed with the Board by mail to Iowa Board of Behavioral Science, Lucas State Office Building, 5th Floor, 321 E. 12th St., Des Moines, Iowa 50319, by email to plpublic@idph.iowa.gov, or electronically using the Administrative Electronic Document Management System (adminhearings.iowa.gov/efile/).

4. Presiding Officer. The Board shall serve as presiding officer at the contested case hearing, but the Board hereby delegates to an Administrative Law Judge from the Department of Inspections and Appeals the authority to make initial rulings on prehearing matters, and requests the administrative law judge be present to assist and advise the Board at the contested case hearing.

5. Pre-hearing Conference. Any party may request a prehearing conference in accordance with 645 IAC 11.17 to discuss issues related to the hearing.

6. Hearing Procedures. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11. At the hearing, you may appear personally or be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at the hearing. If you need to request an alternative time or date for the hearing, you must comply with the requirements in 645 IAC 11.18. The hearing may be open to the public or closed to the public at your discretion.

7. Prosecution. The Office of Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of pleadings should be provided to counsel for the State at the following address:

Laura Steffensmeier
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, Iowa 50319

Ms. Steffensmeier can also be reached by phone at (515) 281-6690 or by e-mail at laura.steffensmeier@ag.iowa.gov.

8. Communications. You may not contact individual Board members in any manner, including by phone, letter, or e-mail, regarding this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and the opportunity to participate, such as at the hearing or in pleadings you file with the Board office and serve upon all parties in the case.

B. LEGAL AUTHORITY AND JURISDICTION

9. Jurisdiction. The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C.

10. Legal Authority. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 147, 154D, and 272C, and 645 IAC chapters 13 and 33.

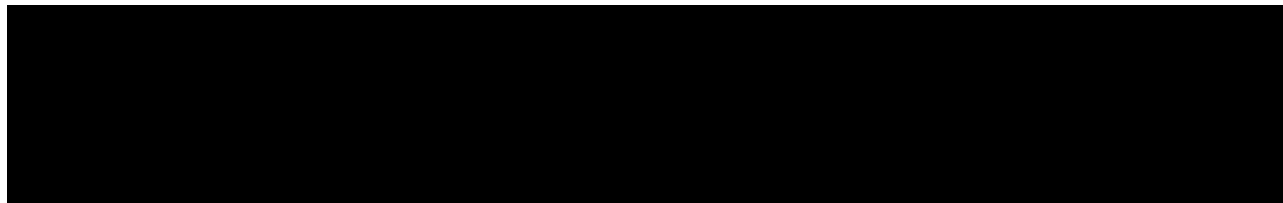
11. Default. If you fail to appear at the hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

C. CHARGES

COUNT I

12. Respondent is charged under 645 IAC 33.2(12) with being convicted of an offense that directly relates to the duties and responsibilities of the profession.

D. FACTUAL CIRCUMSTANCES



E. SETTLEMENT

15. This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC 12.1. If you are interested in pursuing settlement in this matter, please contact the assigned Assistant Attorney General.

F. FINDING OF PROBABLE CAUSE

16. On February 16, 2023, the Iowa Board of Behavioral Science found probable cause to file this Notice of Hearing and Statement of Charges.

A handwritten signature in black ink that reads "Tony Alden". The signature is written in a cursive, flowing style.

Tony Alden, Board Executive
Iowa Board of Behavioral Science

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).